

et Mareschalli hospitii Regis vel eorum alterius tantum, audit' sunt partes, loquela et terminala sine brevi ubicunque se contraxerint infra virgatam vel extra coram sen' nisi loquela liber' tangat ten' ejus vel pertinent', nec obstat petenti exceptio de contractu facto extra virgatam, ut inter placita Petri de Chamnet anno Regis regni Ed. 18. inter Henr' de Wotton petentem, et Ranulfum Foleschanks obligat' præfat' H. in necessariis pro victu et vestitu et hujusmodi ad valenc' 20 li. per an' suo perpetuo inveniend' pro quad' terra in D. et quadam balliva in S. et unde item R. obligavit se in Lond' districtioni Sen' et Mar' Regis anno 15, Rege tunc existente in Vascon'. Cui exceptione de noni nfra virgatam non allocata, petiit judicium si de libero ten' vel ejus pertinen' debuit sine brevi Regis respondere, cum idem H. petit certum redditum ad terminum vite sue: et quia voluit sic obligari, nec volenti et scienti fit injuria †: considerat' fuit per plures justic' qui aderant, ex quo necessaria illa proveniebant tanquam de Camera et non de loco certo de quo potuit visus fieri, quod exceptio præd' locum non haberet, quod aliud diceret et responderet, vel pro indefenso et convicto haberetur. Another invention ad ampliandam jurisdictionem suam was, that although none of the parties were of the King's Houshold, yet they would name them in the declaration and plea of the King's Houshold, and [73 a] so as they conceived, to estop the party to contradict it. But to conclude this point, it appears to you, good reader, that to know what the law was before the Act of 28 E. 1. how necessary the authorities of the said ancient books of the (c) Mirror of Justices, of Bracton, Britton, and Fleta are to discuss this point; and although perhaps one may know the law upon the ancient statutes, yet he will never know the true reason of the interpretation of them, unless he knows what the law was before the making of them; and therefore it is true, quod multa ignoramus quæ nobis non laterent si veterum lectio fuit nobis familiaris.

As to the second point, the ancient style of the Court of the Marshalsea was, (d) *placita Coronæ aulæ hospitii dom' Reg' tenta' coram, &c.* (C) by which words *aulæ hospitii*, it is proved, that at least one of the parties ought to be of the King's Houshold for how can the words be *aulæ hospitii dom' Reg'*, when none of the parties is of the King's Houshold? and it was observed, that those who are of the King's Houshold are called *aulicii*, and that is the reason that it is not necessary in suits there before the Steward and Marshal, (a) to allege that the plaintiff or defendant was of the King's Houshold, for the style of the said Court, as appears afterwards by many authorities, implies it. The second reason is, because the proceedings in the same Court is by bill in respect of the privilege of the parties (D), and not by original; and the Court of King's Bench cannot hold any common plea by bill without privilege of the Court. The third reason, that the service and attendance of the King's servants were so requisite and necessary to the King, that the pleas in the said Court should be rather discontinued by his removal out of the verge, than he should lose the attendance of his servants: and if they might hold pleas between mere foreigners, what reason could there be that the pleas should be discontinued by the King's removal? and why should the Judges of the King's Houshold decide causes, when none of the parties is of the King's Houshold? (b) *Jurisdictio est potestas de publico introducta cum necessitate jurislicendi.* And that agrees well when the parties are of the houshold, for the necessity of the King's service, but not when none of the parties is of the same houshold. In Mich. 42 and 43 Eliz. in the King's Bench, (c) Hall brought a writ of error against Jones of a judgment given in the court of pipowders of the market in the City

† Note, the proceedings here were by consent, as being more expeditious, &c. than in other Courts; and in this case had even the Judges' approbation. [Note to former edition.]

(c) 8 Co. 35. a. Plow. 357. a.

(d) 6 Co. 21. a. Antea 71. a. Doct. pl. 87. 2 Inst. 549.

(c) The Marshal of the King is the Marshal of the King's Bench, nobody else can be understood: the *Mareschallus hospitii* is never spoken of without the addition of *hospitii*. *Snow v. Firebrass*, 2 Salk. 439. S. C. 2. L. Raym. 804.

(a) Doct. pl. 87. 247.

(D) In the Marshalsea Court, the plaint is the commencement of the action. *Ward v. Honeywood*, Doug. 61.

(b) 1 Bulst. 210.

(c) Moor 623, 624. 4 Inst. 272. Cro. El. 773. 1 Roll. 544. 2 Bulst. 21.

K. B. VI.—33*